

HOUSE No. 3892**The Commonwealth of Massachusetts**

PRESENTED BY:

Tricia Farley-Bouvier, (BY REQUEST)*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing offices of legislative research and fiscal analysis.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeanne M. Kempthorne</i>		<i>1/15/2025</i>
<i>Virginia O'Leary</i>		<i>1/15/2025</i>
<i>Louise Farkas</i>		<i>1/15/2025</i>
<i>Frank Farkas</i>		<i>1/15/2025</i>
<i>Jonathan Hecht</i>		<i>1/15/2025</i>
<i>Peter Enrich</i>		<i>1/15/2025</i>
<i>Mary Z. Connaughton</i>		<i>1/15/2025</i>
<i>Jay Kaufman</i>		<i>1/15/2025</i>
<i>Scotia Hille</i>		<i>1/15/2025</i>
<i>Jennifer Nassour</i>		<i>1/15/2025</i>
<i>Jeanne Krieger</i>		<i>1/15/2025</i>
<i>Mary Ann Stewart</i>		<i>1/15/2025</i>
<i>John Lippitt</i>		<i>1/15/2025</i>
<i>Cathleen Cavell</i>		<i>1/15/2025</i>
<i>Douglas Cannon</i>		<i>1/15/2025</i>
<i>Julie Breskin</i>		<i>1/15/2025</i>
<i>Jeff Gross</i>		<i>1/15/2025</i>
<i>Elizabeth Bradt</i>		<i>1/15/2025</i>

Alix Smullin

1/15/2025

Lisa A. Baci

1/15/2025

HOUSE No. 3892

By Representative Farley-Bouvier of Pittsfield (by request), a petition (accompanied by bill, House, No. 3892) of Jeanne M. Kempthorne and others for legislation to establish the offices of legislative research and fiscal analysis. Rules of the two branches, acting concurrently.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing offices of legislative research and fiscal analysis.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. It is hereby declared that the volume and complexity of legislative matters
2 before the the general court requires a high degree of subject-matter proficiency in a large
3 number of areas on the part of members of the general court; that painstaking, exhaustive, and
4 accurate fact-finding and fiscal, economic, budgetary, and policy analysis are a necessity for the
5 proper discharge of legislative duties in a legislative body encompassing the scope of the general
6 court of Massachusetts; that professional factual and policy research and fiscal analysis are
7 recognized as valuable and indispensable tools in the efficient performance of the legislative
8 function; and that it is the intention of this act to establish offices of legislative research and
9 fiscal analysis staffed by nonpartisan, highly qualified professionals who shall perform their
10 duties impartially and in conformity with the highest standards of research practice for the
11 assistance and benefit of the members, committees, and commissions of the general court.

Section 2. Chapter 3 of the General Laws is hereby amended by adding the following sections.

Section 56. There are hereby established within the general court an office of legislative research and an office of fiscal analysis.

(a) The office of legislative research shall assist members of the general court and committees thereof in all matters requiring policy analysis, comparative legal analysis, statistical research, and fact-finding in connection with proposed or potential legislation or other matters pertaining to the functions of the general court; assist with bill-drafting upon request by any member; review bills and amendments in third reading for consistency with existing provisions of the general laws;

prepare a detailed, section-by-section summary for each bill that reaches third reading; maintain legislative history of all bills that reach third reading; and continuously review the general laws for errors, inconsistencies, and other matters requiring technical revision and, from time to time, submit to the counsel to the senate and to the counsel to the house of representatives, jointly, recommendations, including drafts of legislation for the correction, revision, amendment, rearrangement, consolidation, compilation and recodification of the General Laws, or any of them, and amendments thereof, including recommendations for the repeal of such statutory provisions as have become obsolete or the reasons for the enactment of which have ceased to exist. In submitting recommendations under this section the office may recommend the omission or repeal of redundant enactments and those which may have ceased to have any effect on existing rights, the rejection or elimination of superfluous words, the condensation of circuitous, tautological and ambiguous phraseology and the correction of

mistakes, inconsistencies and imperfections. Recommendations for changes of provisions of the General Laws and amendments thereof, as provided for in this section, shall be consistent with the will and intent of the general court as expressed in such provisions at the time of such recommendations.

(b) The office of fiscal analysis shall prepare tax revenue and expenditure forecasts and reviews; analyze the fiscal impact of proposed legislation, upon request of any member of the general court; prepare a fiscal note for each bill that reaches third reading; and perform budgetary, economic, and statistical analyses as requested by the committees on ways and means.

(c) The offices shall make their reports and findings public in electronic form, except to the extent an exemption as provided in General Laws chapter 4, section 7(26) applies to any portion of such reports and findings. Notwithstanding the foregoing, communications between the offices and any member, member's staff, or committee, including requests made and research materials provided, are confidential and may not be disclosed to any other member, staff, or the public.

(d) The offices of legislative research and fiscal analysis shall be provided with quarters in the state house or elsewhere at a location convenient to the general court.

Section 57. (a) Each office shall be administered by a director. The director of each office shall be appointed without regard to political affiliation by a majority vote of the following: the speaker, the senate president, and the leader of the minority party in each chamber. The directors shall be qualified by training, education, and experience to manage, respectively, a research and fiscal analysis organization. No current or former member of the general court shall serve as

56 director of either office. The director of each office shall take an oath to faithfully and
57 impartially execute the duties of the office.

58 (b) Directors shall be appointed for a renewable term of five years from the date of
59 appointment, and shall devote full time and attention to the duties of the office. Directors shall
60 not be terminated within such term except for cause as found by the rules committees of both
61 chambers, acting concurrently, and by resolution of both chambers of the general court.

62 (c) The salary of the directors shall be set by the rules committees of both chambers,
63 acting jointly.

64 (d) The director of each office shall serve in a nonpartisan capacity and ensure that the
65 activities of the office are conducted in a nonpartisan manner. The director during the term of
66 service shall not: (i) hold, or be a candidate for, federal, state or local elected office; (ii) hold an
67 appointed office in a federal, state, or local government; or (iii) serve as an official in a political
68 party.

69 (e) In the case of an absence or vacancy in the office of the director or in the case of
70 disability, the rules committees, acting jointly, may designate an acting director to serve as
71 director until the vacancy is filled or the absence or disability ceases. The acting director shall
72 have all of the powers and duties of the director and shall have similar qualifications as the
73 director.

74 Section 58. (a) The director of each office shall be responsible for the operations of said
75 office, including the hiring of professional and research staff, administrative assistants, and other
76 qualified personnel as may be required to discharge the duties of said office, and may expend
77 with the approval of said committees such sums as may be necessary for such operations. All

78 personnel of the offices, including the directors thereof, shall be appointed without regard to
79 political affiliation and solely on the basis of their professional qualifications and fitness to
80 perform their duties, and shall take an oath to faithfully and impartially execute the duties of the
81 office. The director of each office may prescribe the duties and responsibilities of the personnel
82 thereof and delegate to them authority to exercise any of the powers and perform any of the
83 duties and functions assigned to the office or the director.

84 (b) Compensation for the personnel of each office shall be set by the director of said
85 office commensurate with qualifications, experience, and responsibilities. The directors and
86 other personnel of the offices shall not be deemed to be executive or administrative officers
87 within the meaning of the constitution, but shall serve directly under the general court. They and
88 their assistants shall not be subject to chapter thirty-one.

89 Section 59. Any member or committee may request assistance with policy research,
90 analysis, and bill drafting. Priority of requests shall be established by each director, taking into
91 consideration available resources within and outside the office, the urgency of the request, and an
92 assessment of the necessity for and likely impact of the requested research or analysis.

93 Section 60. (a) The director of each office is authorized to secure information, data,
94 estimates, and statistics directly from the various departments, divisions, agencies, and political
95 subdivisions of the commonwealth, including the units, officers, and agencies of the executive
96 branch and administrative offices of the courts of the commonwealth, as are material to the
97 proper conduct of its duties. All such departments, divisions, agencies, commissions, and
98 political subdivisions shall furnish all available data and information that each director

99 determines to be material to the performance of the duties and functions of its respective office
100 other than information the disclosure of which would be a violation of law.

101 (b) The offices shall report annually, within 90 days of the close of the fiscal year, on
102 their operations and on reports issued and bills prepared during the preceding fiscal year.

103 Section 3. Chapter 3, section 55A is hereby repealed.

104 Section 4. Chapter 3, section 53 is hereby amended by replacing the words
105 “recodification counsel under the provisions of section fifty-five A.” with the words “the director
106 of the office of legislative research under the provisions of subsection (a)(vi) section fifty-six.”